



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

APR 10 2003

DOT-E 13129
(FIRST REVISION)

EXPIRATION DATE: July 31, 2003

1. GRANTEE: Great Lakes Chemical Corporation
El Dorado, AR
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the one-way, one-time transportation in commerce of certain Division 6.1 materials, which are toxic by inhalation, in a non-DOT specification packaging configuration for disposal. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: The marking requirement specified in § 172.301(c); and §§ 173.227(b) and (c) in that the use of drums which do not meet the closure and thickness requirements is not authorized except as specified herein.
5. BASIS: This exemption is based on the application of Great Lakes Chemical Corporation dated September 24, 2002, and additional information dated September 26, 2002, submitted in accordance with § 107.105 and the public proceeding thereon. An additional letter was submitted on April 10, 2003.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Toxic liquid, flammable, nos (1-bromo-2-flouroethane)	6.1	UN2929	PGI, Zone B

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging configuration prescribed must be as shown on the Shell Shac Catalyst Drum drawing on file with the Office of Hazardous Materials Exemptions and Approvals and as follows:

- (1) The inner package is a 43 gallon UN1A1 drum certified and marked as UN1A1/X1.2/300/93/USA;
- (2) The outer package is a 16-gauge, non-specification 85 gallon salvage drum.
- (3) Polyurethane foam is used to separate and cushion the inner drum from the outer drum.

b. OPERATIONAL CONTROLS -

- (1) This exemption only authorizes the material in paragraph 6 to be transported by private carrier from Great Lakes Chemical Corporation, El Dorado, AR to Ensco, Inc., El Dorado, AR a distance of approximately eight miles, without any intermediate pickup or delivery.
- (2) Great Lakes Chemical must load the vehicle, block and brace the drums within the transport vehicle and seal the transport vehicle.
- (3) Drums may not be stacked (double decked) within the transport vehicle.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered for transportation.

b. The marking requirement specified in § 172.301(c) is waived.

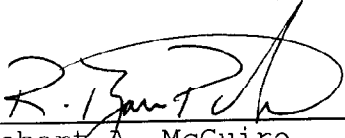
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: DB/AM